



Notification Waiver Determination

Australian Venue Co – assets of White Cockatoo Hotel, Petersham

Acquisition	Australian Venue Co. Holdings Limited (Australian Venue Co), via AVC Operations Pty Limited (AVC), applied for a notification waiver in respect of its proposed acquisition of substantially all of the assets of the licensed hotel trading as the White Cockatoo Hotel (WCH) (including the exclusive right to carry on the business in succession of the vendor and the benefit of the lease) from Petersham Pub Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	11 May 2026

Parties to the Acquisition	The acquirer, AVC, is a wholly owned subsidiary of Australian Venue Co. Australian Venue Co operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as bars, clubs and licensed restaurants. Their venues are individually branded and mostly located in inner-city and metro areas, offering food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. The target, WCH, is a licensed hotel with no gaming facilities, located at 30 Terminus Street, Petersham NSW 2049. WCH facilities include a public bar, bistro and outdoor courtyard. Australian Venue Co, through its venues (including Public House Petersham), and WCH both supply retail hospitality services in the local area surrounding WCH.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: • while there is horizontal overlap between Australian Venue Co and WCH, the combined share of the parties in the supply of retail hospitality services is low • there are alternative suppliers of retail hospitality venues in the local area surrounding WCH.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act